

Here, the facts alleged do not rise to the level required for punitive damages. Instead, Plaintiff alleges that upon moving in, the unit was "dirty and smelly," with a stained carpet, painted counters, and a "softened and bloated" bedroom wall. (Compl. ¶ 12.) Following a flood on November 11, 2024, Defendant actually responded by sending maintenance to pull back the carpet, remove the padding, and install two large fans and a dehumidifier, though Plaintiff claims the equipment was left running for over a month and increased her utility bill. (*Id.* ¶¶ 14, 19.) Plaintiff also claims that Defendant engaged in a "pattern of harassment" and retaliated against Plaintiff, but provides no supporting factual detail beyond the unmade repairs and a failure to honor an early lease termination agreement. (*Id.* ¶¶ 18, 34, 71.) At most, these allegations describe a flawed remediation effort and a dispute over lease obligations, which sound in ordinary negligence and contract rather than despicable, oppressive, or malicious conduct. Further specific facts are required to establish an entitlement to punitive damages under Civil Code section 3294.

Moreover, although Plaintiff characterizes the property conditions as "longstanding defects" and mentions "biological contaminants," the facts alleged do not support an inference of conscious disregard for tenant safety. (Compl. ¶¶ 15, 72.) Less than a month elapsed between the November 11 rainstorm and December 4, 2024 when Plaintiff left the unit to couch surf, and during which time Defendant had drying equipment deployed in the unit. (*Id.* ¶¶ 14–16.) Instead, the allegations describe an inadequate or delayed remediation process, a failure to credit or reduce rent for increased utility costs, and the breach of an agreement to waive rent and termination fees. These matters sound in negligence and breach of contract and do not describe despicable, oppressive, or malicious conduct on the part of Defendant.

Plaintiff also does not plead an adequate basis for corporate liability. Civil Code section 3294(b), provides an employer cannot be liable for punitive damages based on its employee's acts "unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice." Furthermore, "[w]ith respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (*Id.*) Thus, Defendant can only be liable for punitive damages if the bad acts were either (1) committed by its officer, director, or managing agent; (2) ratified or approved by its officer, director, or managing agent; or (3) had advanced knowledge of the unfitness of its employee. (*College Hospital Inc. v. Superior Court, supra*, 8 Cal.4th at 723.)

Here, the complaint does not identify any individual employee, supervisor, or manager by name or title, nor does it allege facts demonstrating that any specific actor directed or ratified the alleged conduct with the required authority. Instead, Plaintiff recites statutory language and asserts that unnamed Does were officers, directors, or managing agents of Defendant who were unfit or ratified the conduct. (Compl. ¶ 24.) This does not satisfy the heightened standard for pleading punitive damages against a corporation.

Accordingly, the motion to strike punitive damages is **granted** with leave to amend.

20. 9:01 AM CASE NUMBER: C24-00285

CASE NAME: PABLO BELTRAN DIAZ VS. IMPORT MOTORS, INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM
INTERROGATORIES, SET NUMBER TWO RE: NOELLE ELIZABETH LUCAS**

FILED BY: BELTRAN DIAZ, PABLO ROBERTO

TENTATIVE RULING:

The tentative ruling applies to Lines 20-22. These discovery motions were vacated and referred to a discovery referee on August 26, 2026. No appearance is required at the hearing on September 2, 2026.

21. 9:01 AM CASE NUMBER: C24-00285

CASE NAME: PABLO BELTRAN DIAZ VS. IMPORT MOTORS, INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR
PRODUCTION OF DOCUMENTS, SET NUMBER TWO RE: IMPORT MOTORS, INC.**

FILED BY: BELTRAN DIAZ, PABLO ROBERTO

TENTATIVE RULING:

See Line 20.

22. 9:01 AM CASE NUMBER: C24-00285

CASE NAME: PABLO BELTRAN DIAZ VS. IMPORT MOTORS, INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR
PRODUCTION OF DOCUMENTS, SET TWO RE: NOELLE ELIZABETH LUCAS**

FILED BY: BELTRAN DIAZ, PABLO ROBERTO

TENTATIVE RULING:

See Line 20.